

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, EXTRAORDINARY, PART II, SECTION 3, SUB-SECTION (i)]

GOVERNMENT OF INDIA  
MINISTRY OF FINANCE  
(DEPARTMENT OF REVENUE)

NOTIFICATION No. 01/2024-Customs (ADD)

New Delhi, the 15<sup>th</sup> January, 2024

G.S.R...(E).- Whereas, the designated authority, *vide* notification number 7/06/2023-DGTR, dated the 30<sup>th</sup> June, 2023, published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 30<sup>th</sup> June, 2023, had initiated the review in terms of sub-section (5) of section 9A of the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), and read with rule 23 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995, in the matter of continuation of anti-dumping duty on imports of “Meta Phenylene Diamine” (hereinafter referred to as the subject goods) falling under tariff item(s) 2921 51 20 or 2921 51 90 of the First Schedule to the Customs Tariff Act, originating in or exported from China PR (hereinafter referred to as the subject country) imposed *vide* notification of the Government of India, Ministry of Finance (Department of Revenue), number 5/2019-Customs (ADD), dated the 24<sup>th</sup> January, 2019, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), *vide* number G.S.R. 46(E), dated the 24<sup>th</sup> January, 2019;

And whereas, in the matter of review of anti-dumping duty on imports of the subject goods, originating in or exported from the subject country, the designated authority in its final findings, published *vide* notification number 7/06/2023-DGTR, dated the 23<sup>rd</sup> October, 2023, published in the Gazette of India, Extraordinary, Part-I, Section 1, dated the 23<sup>rd</sup> October, 2023, has come to the conclusion that-

- (i) the imports from the subject country have remained substantial in absolute terms as well as relative to the domestic industry’s production and in the Indian demand, even though the volume has declined slightly since the original investigation;
- (ii) the production, sales, capacity utilization of the domestic industry is adversely impacted on account of dumped imports;
- (iii) dumped imports from subject country are causing injury to the domestic industry;
- (iv) there is likelihood of not only continuation but also intensification of dumping and consequent injury to the Indian industry in the event of cessation of the existing anti-dumping duties at this stage,

and has recommended continued imposition of the anti-dumping duty on imports of the subject goods, originating in or exported from the subject country, in order to remove injury to the domestic industry.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (5) of section 9A of the Customs Tariff Act, 1975 read with rules 18, 20 and 23 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995 and in supersession of the notification of the Government of India, Ministry of Finance (Department of Revenue), number 5/2019-Customs (ADD), dated the 24<sup>th</sup> January, 2019, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), *vide* number G.S.R. 46(E), dated the 24<sup>th</sup> January, 2019, the Central Government, after considering the aforesaid final findings of the designated authority, hereby imposes on the subject goods, the description of which is specified in column (3) of the Table below, falling under tariff item(s) of the First Schedule to the Customs Tariff Act as specified in the corresponding entry in column (2), originating in the country as specified in the corresponding entry in column (4), exported from the country as specified in the corresponding entry in column (5), produced by the producers as specified in the corresponding entry in column (6), an anti-dumping duty at the rate equal to the amount as indicated in the corresponding entry in column (7), in the currency as specified in the corresponding entry in column (8) and as per unit of measurement as specified in the corresponding entry in column (9) of the said Table, namely :-

TABLE

| S. No. | Tariff Item(s)             | Description of goods    | Country of origin               | Country of export              | Producer                                | Amount | Currency | Unit of Measurement |
|--------|----------------------------|-------------------------|---------------------------------|--------------------------------|-----------------------------------------|--------|----------|---------------------|
| (1)    | (2)                        | (3)                     | (4)                             | (5)                            | (6)                                     | (7)    | (8)      | (9)                 |
| 1.     | 29215120<br>or<br>29215190 | Meta Phenylene Diamine* | China PR                        | Any country including China PR | Zhejiang Amino-Chem Co., Ltd            | 1.50   | USD      | MT                  |
| 2.     | -do-                       | -do-                    | China PR                        | Any country including China PR | Any producer other than serial number 1 | 1.71   | USD      | MT                  |
| 3.     | -do-                       | -do-                    | Any Country other than China PR | China PR                       | Any                                     | 1.71   | USD      | MT                  |

\*Meta Phenylene Diamine , also known as m- Phenylene Diamine, 1,3- diaminobenzene, 1, 3- Benzenediamine, m- Aminoaniline, mBenzenediamine, m- Diaminobenzene, 1,3-Phenylenediamine, 3- Aminoaniline, mFenylendiamin, Phenylenediamine, and m-Aminoaline, Phenylenediamine meta.

2. The anti-dumping duty imposed under this notification shall be levied for a period of five years (unless revoked, superseded or amended earlier) from the date of publication of this notification in the Official Gazette and shall be payable in Indian currency.

*Explanation.-* For the purposes of this notification, rate of exchange applicable for the purpose of calculation of such anti-dumping duty shall be the rate which is specified in the notification of the Government of India, Ministry of Finance (Department of Revenue), issued from time to time, in exercise of the powers conferred by section 14 of the Customs Act, 1962 (52 of 1962), and the relevant date for the determination of the rate of exchange shall be the date of presentation of the bill of entry under section 46 of the said Customs Act.

[F. No. CBIC-190354/255/2023-TRU]

(Nitish Karnatak)  
Under Secretary to the Government of India